

Criminal Law, Business Law, and Fundamental Rights in Pakistan

Offences and Punishments under the PPC, Criminal Procedure, Commercial
Statutes, Labour Law, and Constitutional Rights

Pakistan Legal Reference Series

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Part I — Criminal Law

1. Pakistan Penal Code (PPC), 1860 — Key Offences and Punishments

Offence	PPC Section	Punishment
Murder (<i>Qatl-e-amd</i>)	302	Death (Qisas) or life imprisonment (Ta'zir), depending on proof standard and heirs' choice; compoundable with <i>Diyat</i> (blood money) in some circumstances

Offence	PPC Section	Punishment
Culpable homicide not amounting to murder	304	Imprisonment up to 25 years (life) or lesser term, and/or fine
Causing death by negligence	304-A	Imprisonment up to 3-5 years and/or fine
Attempt to murder	324	Imprisonment up to 10 years (up to 14/25 in aggravated forms) and fine
Voluntarily causing hurt	337-F / 323	Fine and/or imprisonment; varies by type of hurt (<i>Shajjah, Jurh</i>), from short imprisonment/fine to <i>Arsh</i> (compensation) or <i>Qisas</i> for grievous hurt
Rape	376	Death or imprisonment of 10-25 years, plus fine; gang rape : death or life imprisonment (enhanced by Anti-Rape (Investigation & Trial) Act, 2021)
Kidnapping/abduction	363-369	Imprisonment up to 7-10 years and fine; kidnapping for ransom: death or life imprisonment (Anti-Terrorism Act overlay in many cases)
Theft	379	Imprisonment up to 3 years, and/or fine
Robbery	392	Imprisonment up to 10 years and fine; robbery at night: up to 14 years
Dacoity (robbery by 5+ persons)	395	Imprisonment for life, or rigorous imprisonment up to 10 years, and fine
Criminal breach of trust	406	Imprisonment up to 3 years, and/or fine
Criminal breach of trust by public servant/banker/agent	409	Imprisonment up to life or up to 10 years, and fine
Cheating	420	Imprisonment up to 7 years, and/or fine

Offence	PPC Section	Punishment
Forgery	465	Imprisonment up to 2 years, and/or fine (enhanced for forgery of valuable security, will, or authority to adopt — up to 7 years/life under 467)
Criminal intimidation	506	Imprisonment up to 2 years, and/or fine (up to 7 years if the threat is of death/grievous hurt)
Defamation	500	Simple imprisonment up to 2 years, and/or fine
Criminal trespass / house-trespass	447-448	Imprisonment up to 3 months to 1 year, and/or fine
Assault or use of criminal force	352	Imprisonment up to 3 months, and/or fine
Wrongful confinement	342	Imprisonment up to 1 year, and/or fine
Bigamy (contracting a second marriage while first subsists, without lawful excuse)	494	Imprisonment up to 7 years, and fine
Dowry harassment / cruelty by husband or relatives	498-A	Imprisonment up to 3 years (or more under provincial amendments), and fine
Blasphemy-related offences	295-298-C	Range from fine/short imprisonment to death or life imprisonment (Section 295-C, defiling the name of the Prophet) — among the most severe and legally sensitive provisions of the PPC
Terrorism-related acts	Anti-Terrorism Act, 1997 (separate statute, tried in Anti-Terrorism Courts)	Death, life imprisonment, or long-term imprisonment depending on the act; expedited trial procedure
Corruption / misuse of public office	National Accountability Ordinance, 1999 (NAB laws)	Rigorous imprisonment up to 14 years, fine, and disqualification from holding public office for 10 years

Offence	PPC Section	Punishment
Cyber crime (unauthorized access, cyberstalking, hate speech online, cyber-terrorism)	Prevention of Electronic Crimes Act (PECA), 2016	Ranges from imprisonment up to 3 years/fine up to Rs. 1 million (basic offences) to imprisonment up to 14 years or death (cyber-terrorism causing death)
Dishonour of a cheque	489-F	Imprisonment up to 3 years, or fine up to the cheque amount, or both
Acid throwing	336-B	Imprisonment for life (minimum 14 years), and fine up to Rs. 1 million

2. Code of Criminal Procedure (CrPC), 1898

Governs the **process** of criminal justice:

- **FIR (First Information Report)** — Section 154: a report of a **cognizable offence** must be recorded by the police free of cost; refusal can be challenged before the Superintendent of Police or by an application to the Magistrate under Section 22-A/22-B.
- **Arrest** — Sections 46–60: police may arrest without a warrant for cognizable offences; for non-cognizable offences, a **warrant from a Magistrate** is generally required. An arrested person must be produced before a Magistrate within **24 hours** (excluding travel time) — a right also entrenched in **Article 10 of the Constitution**.
- **Bail** — Sections 496–498: bail is a **right** in bailable offences; in non-bailable offences it is **discretionary**, generally refused for offences punishable with death, life imprisonment, or 10 years' imprisonment unless special grounds exist (e.g., the accused is a minor, woman, sick person, or there is unexplained delay).
- **Investigation → Challan (Charge Sheet)** — the police must complete investigation and submit a report (*challan*) to the Magistrate; if evidence is insufficient, a "Class B/C" report may be submitted for discharge.
- **Trial process**: framing of charge → prosecution evidence → statement of accused (Section 342) → defence evidence → arguments → judgment. Appeals lie to the Sessions Court / High Court depending on the trial forum.
- **Compounding of offences** (Section 345): certain offences (e.g., simple hurt, some property offences) may be compromised between parties with or without the court's permission; most serious offences (murder, rape, terrorism) are **not compoundable**, except where *Qisas/Diyat* principles specifically allow compromise with heirs' consent for murder/hurt.

3. Special Protective Criminal Statutes

Statute	Purpose
Anti-Rape (Investigation and Trial) Act, 2021	Special Anti-Rape Crisis Cells, expedited (within 4 months) trial timelines, and chemical/surgical castration as an optional additional punishment for repeat offenders (subject to consent-based provisions).
Transgender Persons (Protection of Rights) Act, 2018	Prohibits discrimination and harassment of transgender persons in employment, education, healthcare, and inheritance; provides for legal gender recognition.
Protection Against Harassment of Women at the Workplace Act, 2010	Requires every organization to adopt a Code of Conduct and Inquiry Committee; penalties for harassment range from censure/fine to dismissal, with parallel criminal liability possible under PPC Section 509 (insulting modesty of a woman: imprisonment up to 3 years and/or fine).
Sindh/Punjab/KP Prevention of Domestic Violence Acts	See Family Law document — protection orders, breach is a criminal offence.
Juvenile Justice System Act, 2018	Special procedure for offenders under 18: separate juvenile courts, presumption against imprisonment for minor offences, prohibition on death penalty for offences committed as a juvenile.

Part II — Business and Commercial Law

4. Companies Act, 2017

Regulates incorporation, governance, and dissolution of companies, administered by the **Securities and Exchange Commission of Pakistan (SECP)**.

- Minimum **1 director** for a single-member company; private companies need at least 2 directors, public companies at least 3 (7 for listed companies), plus mandatory **female director representation** on listed company boards.
- Annual filing requirements: financial statements, annual return, and (for listed companies) compliance with the Code of Corporate Governance.
- **Penalties:** failure to file required returns can attract fines ranging from **Rs. 5,000 to several hundred thousand rupees per day of default**, and in serious cases (e.g., fraudulent conduct of business under Section 217) imprisonment up to **2 years** and fine.

5. Contract, Sale of Goods, and Negotiable Instruments

- **Sale of Goods Act, 1930:** governs contracts for sale of movable goods — conditions and warranties, passing of property/risk, remedies for breach (damages, rejection of goods, suit for price).
- **Negotiable Instruments Act, 1881:** governs cheques, promissory notes, and bills of exchange; **dishonour of a cheque** for insufficiency of funds is both a civil claim (suit for the amount) and a **criminal offence under PPC Section 489-F** (see table above).
- **Partnership Act, 1932:** governs unregistered/registered partnership firms; partners are jointly and severally liable for firm debts; an unregistered firm cannot sue third parties to enforce a contractual right (Section 69 bar).

6. Intellectual Property

Right	Governing Law	Enforcement
Trademarks	Trade Marks Ordinance, 2001	Registration with IPO-Pakistan; infringement suits for injunction/damages; counterfeiting can attract criminal penalties (imprisonment up to 2 years and fine)
Copyright	Copyright Ordinance, 1962	Civil remedies plus criminal penalties for infringement (imprisonment up to 3 years and fine)
Patents	Patents Ordinance, 2000	20-year protection from filing date; infringement suits before IP Tribunals

7. Taxation (Business-Relevant)

- **Income Tax Ordinance, 2001:** taxes business/personal income; non-filing or concealment can attract penalties (percentage of tax due) and, for deliberate tax fraud, prosecution with imprisonment up to **10 years** in serious cases.
- **Sales Tax Act, 1990:** imposes sales tax on taxable supplies; registered persons must file periodic returns; tax fraud can lead to imprisonment up to 10 years plus recovery of tax and penalty.

8. Labour and Employment Law

Statute	Key Protection
Industrial and Commercial Employment (Standing Orders) Ordinance, 1968	Regulates conditions of service, termination procedure, and misconduct proceedings for permanent workers.
Industrial Relations Act, 2012 (and provincial equivalents)	Right to form/join trade unions; regulates collective bargaining and strikes; unfair labour practices are punishable with fine.
Minimum Wages laws (provincial)	Sets legally binding minimum monthly wage; non-payment can attract fines and back-payment orders from Labour Courts.
Employees' Old-Age Benefits Act, 1976 (EOBI)	Mandatory pension-contribution scheme for eligible employees; employer default attracts penalty and recovery proceedings.
Provincial Employees' Social Security Ordinance, 1965	Mandatory health/social-security coverage for covered employees; employer non-registration/non-contribution is punishable with fine and, on repeat default, imprisonment.
Factories Act, 1934	Workplace safety, working hours, and child-labour restrictions (prohibits employment of children under 14 in factories); violations attract fines and, for serious/repeat breaches, imprisonment of the occupier/manager.

Part III — Fundamental Rights and Their Enforcement

9. Fundamental Rights under the Constitution (Articles 8-28)

Article	Right
8	Laws inconsistent with fundamental rights are void
9	Security of person (life and liberty save in accordance with law)
9-A (<i>added 2024</i>)	Right to a clean, healthy, and sustainable environment
10	Safeguards against arbitrary arrest and detention (production before a Magistrate within 24 hours)

Article	Right
10-A	Right to a fair trial and due process
11	Prohibition of slavery, forced labour, and child labour (under age 14 in hazardous employment)
12-13	Protection against retrospective punishment and double jeopardy
14	Inviolability of human dignity; freedom from torture for extracting evidence
15	Freedom of movement
16	Freedom of assembly
17	Freedom of association (political parties, unions)
18	Freedom of trade, business, or profession
19	Freedom of speech and expression, subject to reasonable restrictions (law, order, morality, security, contempt of court, defamation, incitement to an offence)
19-A	Right to information in matters of public importance
20	Freedom to profess, practise, and propagate religion
21	Freedom from compulsion to pay taxes for another religion
22	Educational institution rights re: religious instruction
23-24	Right to property, subject to lawful acquisition/compensation
25	Equality of citizens before law; no discrimination on the basis of sex alone
25-A	Right to free and compulsory education (ages 5-16)
26-27	Non-discrimination in access to public places and in employment under the Federal Government
28	Right to preserve language, script, and culture of any section of citizens

10. Enforcement Mechanisms

- **Article 199** — allows any aggrieved person to petition a **High Court** for a writ (habeas corpus, mandamus, prohibition, certiorari, quo warranto) to enforce a fundamental right or compel/prevent action by a public authority. (Note: as of the 26th Amendment, suo motu action under 199(1A) is barred — a formal petition is required.)

- **Article 184(3)** — historically allowed the **Supreme Court** to take up matters of public importance involving fundamental rights directly; since the 26th and 27th Amendments, this jurisdiction is exercised through dedicated **Constitutional Benches**, and — following the 27th Amendment — significant constitutional-rights matters may fall within the exclusive domain of the new **Federal Constitutional Court**.
- **Human Rights Cells / National Commission for Human Rights**: statutory bodies that can receive complaints and recommend action, though they do not have direct adjudicatory/coercive power equivalent to a court.
- **Ombudsman institutions** (Federal Ombudsman/Mohtasib, Provincial Ombudsmen, Federal Tax Ombudsman, Banking Mohtasib): provide an accessible, low-cost forum for maladministration complaints against government agencies.

Disclaimer: Criminal, business, and constitutional law carry serious consequences and are subject to frequent legislative and judicial change (especially given the ongoing litigation over the 26th/27th Amendments). This document is for general orientation only — consult a licensed advocate for any specific case.